

ORDINANCE NO. A 36

TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE TO ENLARGE, EXTEND, MODIFY AND DEFINE THE CORPORATE LIMITS AND BOUNDARIES OF THE TOWN OF DECATUR, NEWTON COUNTY, MISSISSIPPI

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, NEWTON COUNTY, MISSISSIPPI:

SECTION 1. That the lands described herein and below, which said lands have not heretofore been embraced within the corporate boundaries and the limits of the Town of Decatur, Mississippi, be and hereby are included within said corporate limits and boundaries of said City and are described as follows:

Begin at the Northwest corner of the NW $\frac{1}{4}$ of the SW $\frac{1}{4}$ of Section 12, T7N, R11 E, Newton County, Mississippi, and run thence East along the north line of the South $\frac{1}{2}$ of the said Section 12 to its intersection with the South right-of-way line of Decatur-Stratton Road; thence Easterly along the South right-of-way line and its extension thereof of the Decatur-Stratton Road to the centerline of Okahatta Creek; thence Southerly along the centerline of Okahatta Creek to the East line of Section 29, T7N, R12E, thence South along east line of said Section 29 to NE corner of SE $\frac{1}{4}$ of SE $\frac{1}{4}$ of said Section 29, thence west to the West right-of-way line of Highway 503, thence North along west side of Highway 503 to the intersection of the North right-of-way line of Country Club Road; thence Westerly along the North right-of-way line of Country Club Road to its intersection with the East right-of-way line of Mississippi State Highway No. 15; thence Westerly to the intersection of the West right-of-line of Mississippi State Highway No: 15 and the North right-of-way line of Spence Road; thence Westerly along the North right-of-way line of Spence Road to its intersection with the North right-of-way line of Lewis Road; thence Westerly along the North right-of-way line of Lewis Road and its extension thereof to its intersection with the North right-of-way line of Mapp Road; thence Westerly along the North right-of-way line of Mapp Road to its intersection with the West line of Section 25, T7N, RI IE; thence North along the West line of the said Section 25 to the Southwest corner of Section 24, T7N, RI IE, thence Northerly along the West line of the said Section 24 to the Southwest corner of Section 13, T7N, RI IE; thence North along the West line of the said Section 13 to the Southwest corner of Section 12, T7N, RI IE; thence North along the West line of the said Section 12 to the point of beginning, less and except: beginning at a point which Is forty chains due east of the center of the courthouse, thence south forty chains, thence west eighty chains, thence north eighty chains, thence east eight chains, thence south forty chains to the point of beginning, comprising parts of Section 18, 19 and 20, Township 7 North, Range 12 East, Choctaw Meridian, Newton County, Mississippi.

SECTION 2. That after the inclusion of the lands described in Section I above within the corporate boundaries of the Town of Decatur, as aforesaid, the enlarged and extended corporate boundaries and limits of said Town be, and hereby are, as described as follows:

Begin at the Northwest corner of the NW $\frac{1}{4}$ of the SW $\frac{1}{4}$ of Section 12, T7N, RI I E, Newton County, Mississippi, and run thence East along the North line of the South $\frac{1}{2}$ of the said Section

12 to its intersection with the South right-of-way line of Decatur-Stratton Road; thence Easterly along the South right-of-way line and its extension thereof of the Decatur-Stratton Road to the centerline of Okahatta Creek; thence Southerly along the centerline of Okahatta Creek to the East line of Section 29, T7N, R12E, thence South along east line of said Section 29 to NE corner of SE ¼ of SE ¼ of said Section 29, thence west to the West right-of-way line of Highway 503, thence North along west side of Highway 503 to the intersection of the North right-of-way line of Country Club Road; thence Westerly along the North right-of-way line of Country Club Road to its intersection with the East right-of-way line of Mississippi State Highway No. 15; thence Westerly to the intersection of the West right-of-way line of Mississippi State Highway No. 15 and the North right-of-way line of Spence Road; thence Westerly along the North right-of-way line of Spence Road to its intersection with the North right-of-way line of Lewis Road; thence Westerly along the North right-of-way line of Lewis Road and its extension thereof to its intersection with the North right-of-way line of Mapp Road; thence Westerly along the North right-of-way line of Mapp Road to its intersection with the West line of Section 25, T7N, RI IE, thence North along the West line of the said Section 25 to the Southwest corner of Section 24, T7N, RI IE, thence Northerly along the West line of the said Section 24 to the Southwest corner of Section 13, T7N, RI IE, thence North along the West line of the said Section 13 to the Southwest corner of Section 12, T7N, RI IE; thence North along the West line of the said Section 12 to the point of beginning.

SECTION 3. That the Town of Decatur, Mississippi, shall make the following improvements in the territory to be annexed, to-wit:

- A. Maintenance of existing streets.
- B. Construction of new streets and/or reconstruction of existing street, where necessary and economically feasible.
- C. Installation of water lines, sewer lines, and street lights where necessary economically feasible.

The improvements hereinafter set forth shall be made within a reasonable time, not to exceed 7 years from the effective date of this Ordinance, unless delayed by war, military preparedness restrictions, natural disaster, or other unforeseen physical, climatological, economic, or other catastrophe unforeseen at the effective date of this Ordinance.

SECTION 4. That the Town of Decatur, Mississippi, shall furnish said annexed territory to the following municipal or public services, which shall be made available to said annexed territory from and after the effective date of this Ordinance, to-wit:

- A. Police protection.
- B. Garbage and trash removal.
- C. Pest control.
- D. Maintenance of existing streets.
- E. The right to exercise the ballot and the furnishing of all municipal services presently made available to the citizens residing within the municipal corporate limits of the Town of Decatur.
- F. Fire protection.
- G. Zoning regulations and enforcement of building and other codes enacted to regulate and insure orderly development of said annexed area.

SECTION 5. That the Town of Decatur of Newton County, Mississippi, through its attorney, shall file a petition in the Chancery Court of Newton County, Mississippi, being the County in which the Town of Decatur is wholly situated, which said petition shall recite the facts of the adoption of this ordinance and shall pray that the, enlargement and modification of the municipal boundaries of the Town of Decatur, as hereinabove fixed and determined, shall be ratified, approved and confirmed by said Court. Said petition shall have attached thereto as exhibits a certified copy of this Ordinance and maps or plats of the boundary of the area to be annexed and the corporate minutes of the Town of Decatur as they will exist in the event such extension and modification of said; boundaries become effective.

SECTION 6. That the Mayor and Board of Aldermen of the Town of Decatur, Newton County, Mississippi, shall, be this ordinance hereby authorize, empower and direct the City Attorney, City Clerk, Director of Public Works and all other employees of said municipality to do all things necessary to perfect said annexation as required by law.

SECTION 7. That this Ordinance shall become effective **10** days after the date of the Decree of the Chancery Court of Newton County, Mississippi is entered, ratifying, approving and confirming the enlargement and modification of the boundaries of the Town of Decatur, Newton County, Mississippi, as described and adopted in this Ordinance.

PASSED by the Board of Aldermen of the Town of Decatur, Newton County, Mississippi, this the 1st day October, 2002.